



LEGAL COMPLIANCE SERIES

The Intellectual Property Protection Guide

A comprehensive walkthrough checklist for registering trademarks, copyrights, and filing business structures like LLCs or corporations.

3

IP PROTECTIONS

47

CHECKLIST STEPS

100%

ACTIONABLE

COMPREHENSIVE GUIDE

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Table of Contents

Introduction	3
Trademark Registration	4
Copyright Protection	8
Business Structures (LLC & Corporation)	12
Implementation Timeline	16
Key Takeaways & Next Steps	18
 QUICK REFERENCE	
Trademark Checklist	6
Copyright Checklist	10
LLC Formation Checklist	14

INTRODUCTION

Why Intellectual Property Protection Matters

Your intellectual property is often your most valuable asset. This guide provides actionable checklists and visual process flows to help you protect your brand, creative works, and business structure from day one.

TRADEMARK

Brand Name

Protects logos, slogans, brand identity

COPYRIGHT

Creative Works

Protects original content, software, designs

LLC

Liability Shield

Limits personal liability, tax flexibility

CORPORATION

Growth Ready

Investor-friendly, stock options, expansion

01. Who Needs This Guide?

You Are...	Primary Protection Needed	Priority
Startup Founder	Trademark + LLC formation	Critical
Content Creator	Copyright registration	High
E-commerce Seller	Trademark + business structure	Critical
Software Developer	Copyright + patent consideration	High
Creative Professional	Copyright + trademark (portfolio)	Medium
Growing Business	Full IP audit + corporate structure	Critical

🕒 Time-Sensitive Warning

Waiting to register your trademark can cost you the rights to your brand. The first to file generally wins protection, regardless of who used it first in commerce.

02. What This Guide Covers



Trademark

Search, filing, and protection



Copyright

Registration and enforcement



LLC/Corp

Structure and filing

Trademark Registration

A trademark protects your brand identity—logo, name, slogan, or sound—that distinguishes your goods or services from others in the marketplace.

1.1 Understanding Trademark Types

Trademark Protection Categories

Types of marks and their specific applications



Word Marks

- Company or product names (e.g., "Apple")
- Strongest protection type
- Protects the name regardless of design
- + Maximum flexibility

Design Marks

- Logos, symbols, stylized text
- Requires specific design representation
- Protects visual element only
- + Visual brand protection

Sound Marks

- Distinctive audio identifiers
- Jingles, sonic logos (e.g., NBC chimes)
- Requires audio recording submission
- + Unique differentiation

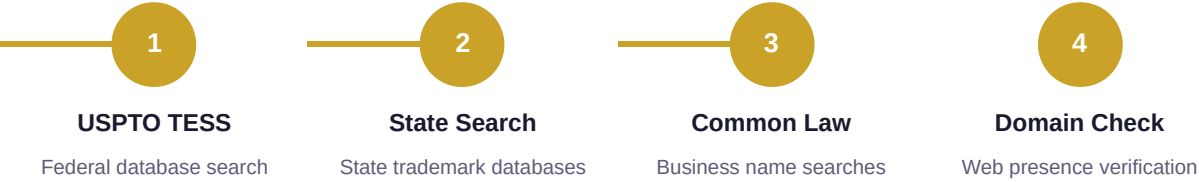
Service Marks

- Services rather than products
- Often denoted with SM symbol
- Similar protection to trademarks
- + Service brand identity

1.2 Trademark Search Process

🔍 Before You File: Comprehensive Search Required

Every successful trademark application starts with thorough research. Use multiple databases and consider phonetic similarities to avoid costly rejection.



1.3 Trademark Filing Checklist

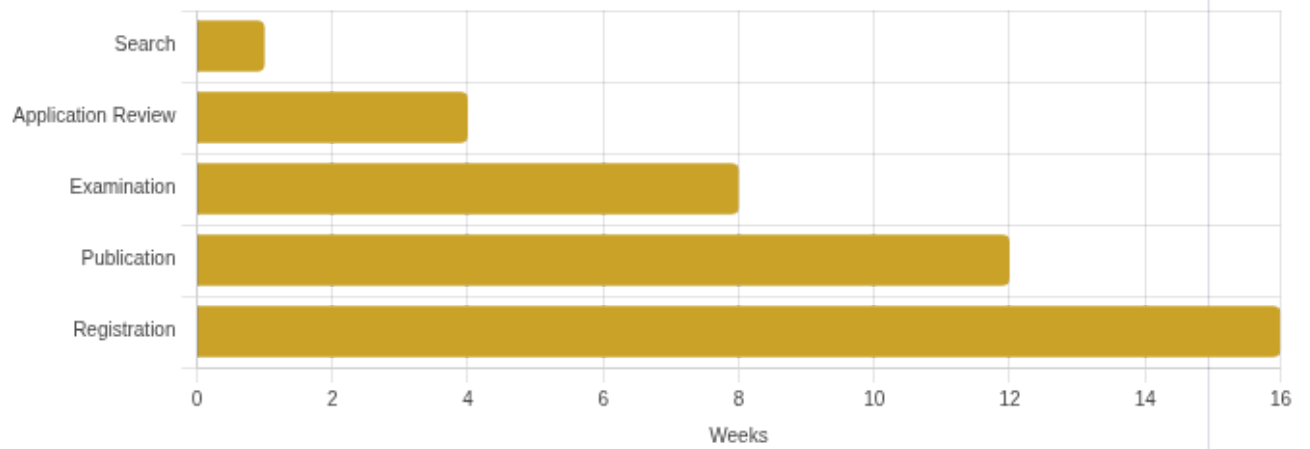
📋 Pre-Filing Requirements

- | | | |
|-------------------------------------|---|-------------|
| ☒ | Conduct USPTO TESS search
Search all dead and live applications in your class | Required |
| ☒ | Verify state-level availability
Check Secretary of State databases in key states | Required |
| ☒ | Check domain and social media availability
Ensure consistent brand presence across platforms | Recommended |
| ☐ | Identify correct trademark class(es)
NICE classification determines protection scope (45 classes) | Required |
| ☐ | Document first use in commerce date
Actual or intended use dates matter for priority | Required |
| ☐ | Prepare specimen samples
Images showing mark as used in commerce | Required |

1.4 Filing Timeline & Costs

Trademark Registration Timeline

Typical processing duration from application to registration



Filing Type	Cost (Per Class)	Time to Register	Protection Duration
TEAS Plus	\$250	8-12 months	10 years (renewable)
TEAS Standard	\$350	8-12 months	10 years (renewable)
Intent to Use	\$250 + \$150 per extension	12-18 months	10 years (renewable)

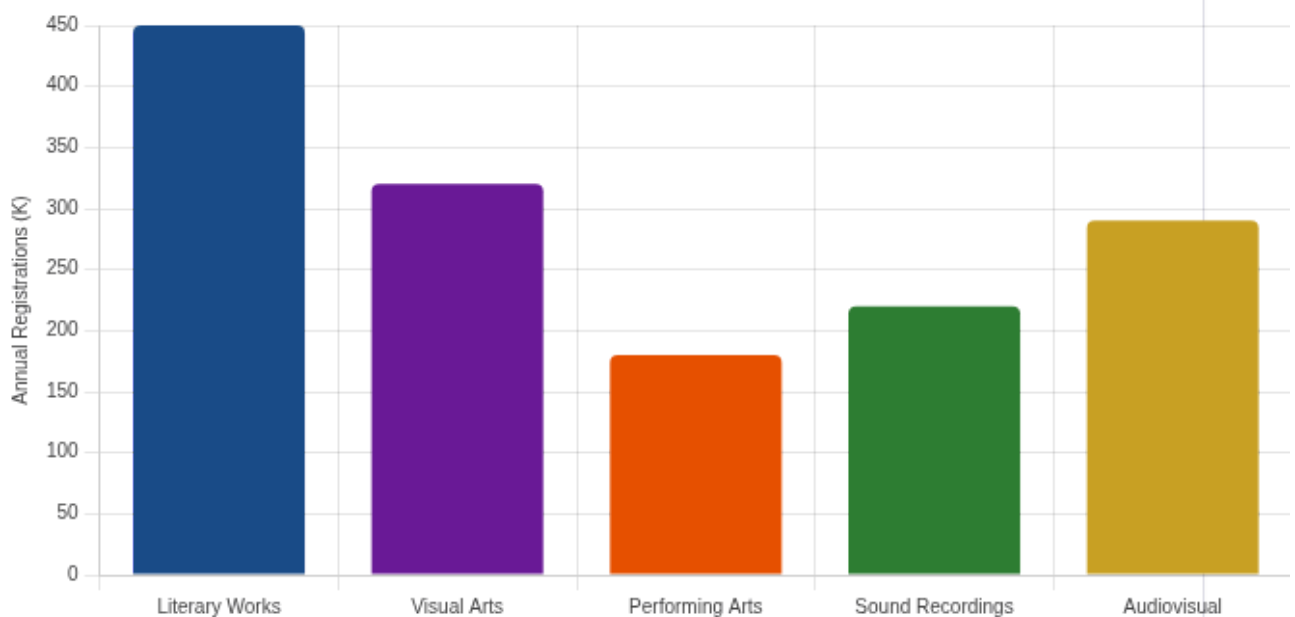
Copyright Protection

Copyright automatically protects original works of authorship the moment they are created and fixed in a tangible form. However, federal registration provides significant additional benefits.

2.1 What Copyright Protects

Copyrightable Works by Category

Federal registration available for all these categories



LITERARY WORKS

Books

Novels, articles,
software code

VISUAL ARTS

Images

Photos, paintings,
designs

PERFORMING ARTS

Audiovisual

Music, video, choreography

SOUND RECORDINGS

Audio

Music, podcasts,
performances

2.2 Copyright Registration Benefits

☑ Why Register Your Copyright?

While copyright exists from creation, registration with the U.S. Copyright Office unlocks critical legal protections: the ability to sue for infringement, seek statutory damages up to \$150,000, recover attorney's

fees, and establish a public record of ownership.

Without Registration

- Cannot file lawsuit in federal court
- Limited to actual damages only
- No attorney's fees recovery
- Difficult to prove ownership
- - No statutory damages

With Registration

- + Federal court jurisdiction
- + Up to \$150,000 statutory damages
- + Attorney's fees reimbursement
- + Prima facie evidence of ownership
- + Copyright notice credibility

2.3 Copyright Registration Checklist

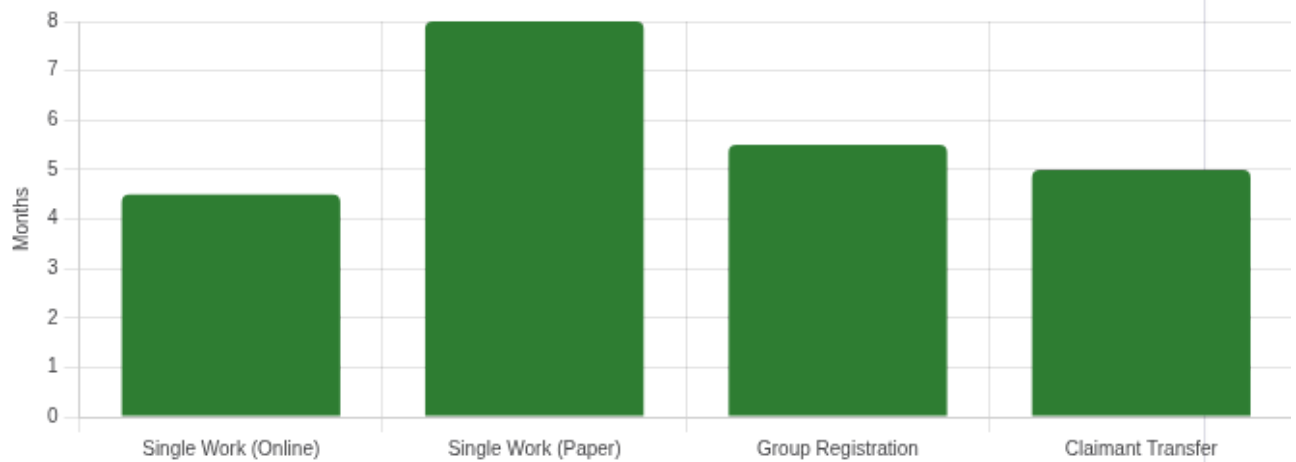
Registration Requirements

- | | |
|--|----------|
| ☒ Identify the work type | Required |
| Single work, collection, or series registration | |
| ☒ Gather authorship information | Required |
| Names, dates, and contribution details for all authors | |
| ☐ Determine publication status | Required |
| Published works require deposit copies; unpublished do not | |
| ☐ Complete the application form | Required |
| Online via Copyright Office (faster processing) | |
| ☐ Submit required deposit | Required |
| Copy of the work (format varies by work type) | |
| ☐ Pay the filing fee | Required |
| \$45-\$65 for single work; \$65-\$85 for group/series | |

2.4 Registration Timeline & Costs

Copyright Registration Processing Time

Current processing times vary by work type and filing method



Registration Type	Filing Fee	Processing Time	Best For
Single Work (Online)	\$65	3-6 months	Individual creations
Single Work (Paper)	\$100	6-10 months	Complex claims
Group Registration (Unpublished)	\$85	4-7 months	Multiple unpublished works
Claimant Transfer	\$105	4-6 months	Ownership changes

Tip Register within 3 months of publication to preserve your right to seek statutory damages and attorney's fees in infringement cases.

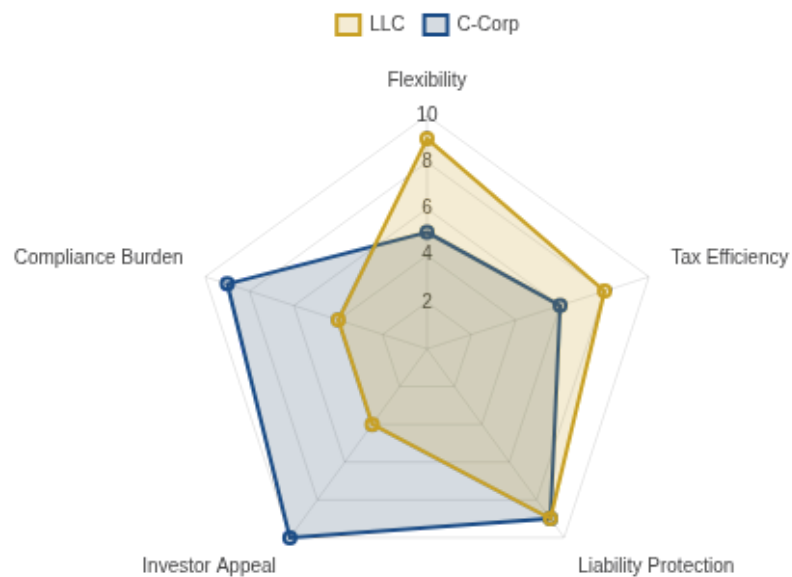
LLC vs. Corporation

Choosing the right business structure is one of the most important decisions you'll make. It affects your liability protection, taxation, compliance requirements, and ability to raise capital.

3.1 LLC vs. Corporation: Key Differences

Business Structure Comparison

Side-by-side analysis of LLC and Corporation characteristics



LLC - Limited Liability Company

Ownership

- Members (owners) - no limit
- Flexible profit distribution
- Single or multi-member allowed
- + Simple ownership structure

C-Corp - Corporation

Ownership

- Shareholders - no limit
- Stock-based ownership
- Investor-friendly for VC funding
- + Multiple share classes

Management

- Member-managed or manager-managed
- Less formal requirements
- Flexible operational structure
- + Minimal bureaucracy

Management

- Board of Directors + Officers
- Formal hierarchy required
- Annual meetings required
- + Clear governance structure

Taxation

- Pass-through taxation (default)
- Optional S-election for flow-through
- No double taxation
- + Tax flexibility

Taxation

- Double taxation (corp + dividends)
- C-corp rate: 21% federal
- May be better for retention
- + Lower corp rate (TCJA)

3.2 Decision Matrix: Which Structure to Choose?

Your Situation	Recommended Structure	Reason
Solo entrepreneur, service business	LLC	Simple, flexible, pass-through tax
Seeking venture capital investment	C-Corp	Standard for VC deals and equity
Real estate investment	LLC	Asset protection, tax simplicity
Planning to go public (IPO)	C-Corp	Required structure for public markets
Freelance/consultant business	LLC	Liability protection, simple compliance
E-commerce with expansion plans	LLC initially, convert	Start simple, restructure for growth

3.3 LLC Formation Checklist

LLC Formation Steps

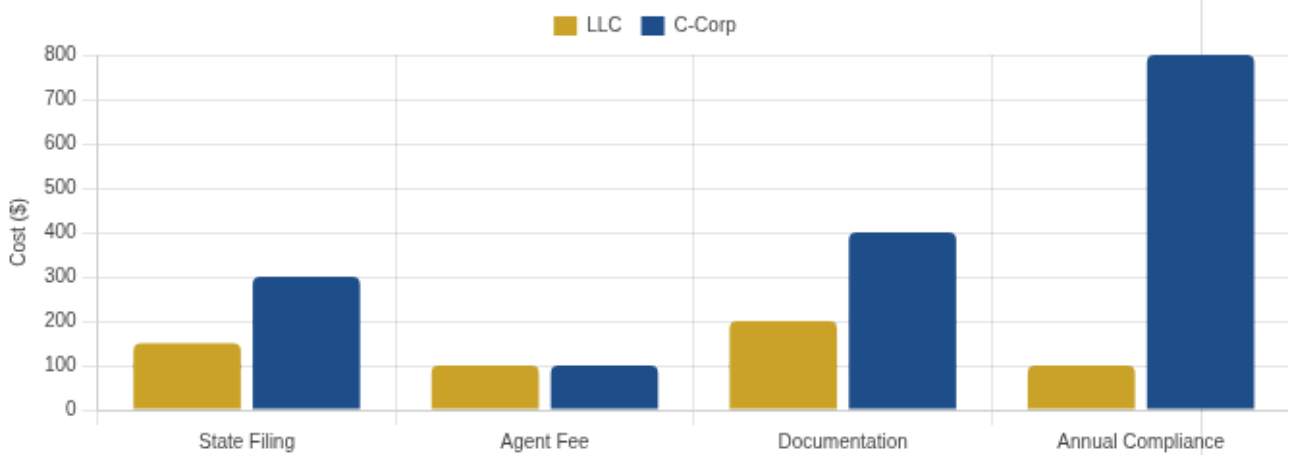
- ☒ **Choose a unique business name** Required
Verify availability with Secretary of State
- ☒ **Designate a registered agent** Required
Person/entity to receive legal documents
- ☐ **File Articles of Organization** Required
State filing with formation details

- ☐ **Create an Operating Agreement** Recommended
Internal rules for ownership and operations
- ☐ **Obtain EIN from IRS** Required
Employer Identification Number (free)
- ☐ **Open business bank account** Required
Separate personal and business finances
- ☐ **Check state-specific requirements** Required
Business licenses, permits, local filings

3.4 Formation Costs Comparison

LLC vs. Corporation Formation Costs

One-time formation costs (state filing fees vary by state)



Requirement	LLC	C-Corporation
State Filing Fee	\$50-\$500	\$100-\$800
Registered Agent	\$0-\$300/year	\$0-\$300/year
Operating Agreement	\$0-\$500	N/A
Bylaws	N/A	\$100-\$500
Initial Stock Issuance	N/A	\$0-\$200
Annual Compliance	Low (\$50-\$200)	High (\$500-\$2000)

Implementation Timeline

Here's a recommended phased approach to implementing your IP protection strategy, optimized for efficiency and risk reduction.

4.1 Phased Implementation Timeline



4.2 Week-by-Week Action Plan



4.3 Priority Matrix

Task	Priority	Timeline	Impact
Conduct trademark search	Critical	Week 1	Prevents costly rebranding
File trademark application	Critical	Week 1-2	Establishes priority date
Form LLC/Corp	Critical	Week 2	Liability protection begins
Register copyrights	High	Week 3	Legal enforcement rights
Open business accounts	High	Week 3-4	Separates personal/business
Set up monitoring	Medium	Week 4+	Ongoing protection

⚡ Fast-Track Option

If you're in a time crunch, prioritize: (1) Business name search, (2) LLC filing, (3) Trademark application. These create the legal foundation that everything else builds upon.

4.4 Ongoing Maintenance Requirements

Annual Compliance Checklist

- ☐ **Trademark renewal (between years 5-6)** Required
USPTO requires Section 8 declaration between years 5-6
- ☐ **LLC annual report filing** Required
Most states require annual report with updated information
- ☐ **Trademark monitoring** Recommended
Watch for confusingly similar marks in your class
- ☐ **Copyright work documentation** Optional
Track new creations requiring registration

CONCLUSION

Key Takeaways & Next Steps

01. Act Before Someone Else Does

Trademark priority goes to the first to file, not the first to use. Don't wait until your brand is established to protect it—file early and file strategically.

02. Register Everything That Matters

Copyright registration unlocks your ability to enforce your rights and seek maximum damages. While registration isn't required for copyright to exist, it's essential for meaningful protection.

03. Structure Determines Liability

Your business structure choice directly impacts your personal liability exposure. An LLC provides a critical legal separation between personal and business assets—don't operate without one.

04. Your Next Steps

1 Today: Run a trademark search for your business name using USPTO TESS

2 This Week: Choose your business structure and begin LLC filing process

3 Next Week: Register your key copyrights with the U.S. Copyright Office

4 Monthly: Set up trademark monitoring and annual compliance calendar

Remember IP protection is not a one-time event—it's an ongoing commitment. Regular monitoring and timely renewals are essential to maintaining your rights.

- USPTO Trademark Electronic Search System (TESS): tess2.uspto.gov
- U.S. Copyright Office: copyright.gov
- IRS Employer Identification Number: irs.gov/ein
- SBA Business Structure Guide: sba.gov/business-guide

— END OF GUIDE —